

Advertiser Terms & Advertising Agreement — Get Goods Gratis (Free)

⚠ **DRAFT — NOT LEGAL ADVICE.** This is an inventor-prepared **template** agreement for qualified counsel to review, tailor, and approve before it is offered to advertisers. It is the standalone contract a **business advertiser** accepts when buying advertising on the platform — the platform's primary revenue relationship — and it consolidates the billing, cancellation, and delivery-guarantee posture currently spread across `FOR-YOUR-ATTORNEY.md`. Bracketed items **[LIKE THIS]** are for counsel/owner. Distinct from the consumer Terms of Service and the Partner Agreement. Prepared 2026-09-13.

0. Orientation

This Agreement governs the purchase and delivery of **advertising** on the platform by a business ("Advertiser," "you") from **[LICENSOR — legal entity/owner name]** ("Company," "we"). The consumer economy is closed-loop and governed separately; this document is B2B.

1. Acceptance and eligibility

By purchasing or running advertising, you agree to these terms. You represent you are a **business** acting through an authorized representative, are **18+**, and will comply with law and our policies.

2. Advertising products

The Company offers **tiered advertiser products (Tier 1 entry, Tier 2 "Scale," Tier 3 "Unlimited")**, sponsored listings, premium boosts, and PPC-network advertising (a shared feature across all three tiers), plus a **founding pre-revenue offer**. Specific inventory, capabilities, targeting, and pricing are described at purchase and in the monetization documents. **[Counsel: confirm the product descriptions and any capability vs. impression-volume distinctions are accurately disclosed.]**

3. Billing and prepayment

- Each tier is **prepaid for the full 52 weeks up front in a single charge**, recognized across **13 four-week cycles. No recurring auto-charge / no auto-renew** is built, so there is no negative-option/auto-renew exposure on this path. Billing is disclosed as "billed in 13 four-week cycles," never "monthly."
- Card payments use **Strong Customer Authentication (3-D Secure)** where required; a placement activates only after payment clears. **[Counsel: confirm SCA + receipt/disclosure language.]**
- You are responsible for applicable **taxes** on your purchase. **[CPA/counsel: sales-tax/VAT treatment of advertising services per jurisdiction — see `TAX-OBLIGATIONS-AND-FILINGS-BRIEF.md`.]**

4. Cancellation and refunds

A **30-day proportional cancellation** applies: cancel within 30 days of purchase and recover **one-third** of what you paid (the Company retains two-thirds); the non-refundable portion is disclosed and consent-logged before it applies, and any refund is issued as **closed-loop advertising credit**, not cash/card. Outside that window, the Full-Value Delivery Guarantee (§5) governs. **[Counsel: confirm the cancellation math, disclosure, and credit-not-cash treatment are enforceable and clearly presented.]**

5. Delivery — value delivered, results never guaranteed

The Company commits to **deliver advertising value** (impressions/placements measured at a conventional CPM) and, where the guarantee is enabled, to keep delivering until the purchased value is fulfilled (**make-good only**; the refund backstop ships off). The "dollar amount" is **advertising value the Company measures and controls — it is never your revenue, sales, or ROI, and there is no results or money-back guarantee**. Delivery may extend beyond the initial term as the audience grows. See `FULL-VALUE-DELIVERY-GUARANTEE.md`. **[Counsel: confirm this is a clean service-level commitment with no performance-guarantee/credit character; finalize the disclosure wording.]**

6. Reporting and metrics

The Company provides measured performance metrics (e.g., impressions, clicks, CTR, CPC, conversions, CPA, ROAS, and network metrics such as eCPM/IPM/CPP and windowed ROAS) computed from **real activity** and benchmarked against standard norms. **Every figure is measured, shown with its basis, and never a guarantee of ROI**; below a data threshold the Company says "still gathering data" rather than fabricating numbers. Off-platform revenue is counted only when you report it, stored flagged/unverified. See `ADVERTISER-AI-REPORTS.md`.

7. Creative — content standards and licensing

- You grant the Company a license to host, display, and (where you request AI-assisted creative) generate and optimize your advertising across owned and, where you opt in, social surfaces.
- **AI-assisted/AI-generated creative** carries a visible "AI-generated" label and C2PA provenance (`AI-CONTENT-DISCLOSURE-DESIGN.md`).
- You represent your creative and the products/claims in it are **truthful, non-misleading, lawful, and non-infringing**, with substantiation for claims. The Company may **reject, pause, or remove** any advertising at its discretion (e.g., prohibited categories, policy or legal risk). **[Counsel: prohibited-category list + right-to-reject language; who bears liability for advertiser claims.]**

8. Advertiser responsibilities and compliance

You are solely responsible for your products, offers, landing pages, and legal compliance (including your own advertising, consumer-protection, and privacy obligations). You will not use the platform to advertise unlawful goods/services or to infringe rights. **[Counsel: FTC advertising-law allocation; indemnity for advertiser content.]**

9. Confidentiality, term, termination

Each party protects the other's non-public information. The Agreement runs for the purchased term; the Company may suspend/terminate for breach, non-payment, or legal risk; cancellation/refund is governed by §4. Survival: IP, confidentiality, disclaimers, liability, governing law.

10. Disclaimers and limitation of liability

Advertising is provided "as is"; the Company disclaims warranties to the maximum extent permitted by law and **does not guarantee revenue, ROI, or specific results**. Total liability is limited to **[amounts you paid for the affected advertising — counsel to set]**; no indirect/consequential damages. **[Counsel: carve-outs.]**

11. Governing law and disputes

Governed by the laws of **[STATE/COUNTRY — counsel]**. **[Counsel: arbitration + class-action waiver vs. courts; venue; align with the Terms of Service and Partner Agreement.]**

12. General; contact

Independent parties; changes prospective on notice; assignment to an affiliate/successor permitted; entire agreement; severability. **[Legal entity name, contact email/address.]** Intended web address: `getgoodsgratis.com`.

Notes for counsel (decisions to finalize)

1. **Prepaid 52-week / 13-cycle billing** — confirm no auto-renew/negative-option exposure and the "13 four-week cycles" disclosure (§3).
2. **SCA/3-D Secure** + receipt/disclosure at checkout (§3).
3. **Sales-tax/VAT on advertising services** by jurisdiction (§3) — with the CPA.
4. **30-day proportional cancellation** — math, disclosure, credit-not-cash enforceability (§4).
5. **Full-Value Delivery Guarantee** — clean service-level commitment, make-good only, value-not-ROI wording (§5).
6. **Metrics disclosure** — measured/benchmarked, never guaranteed (§6).
7. **Creative licensing + AI-content disclosure** + right-to-reject + prohibited categories (§7).
8. **Allocation of advertiser-claim liability** + indemnity (§8/§10).
9. **Liability cap + carve-outs** (§10).
10. **Governing law / arbitration**, consistent across ToS + Partner Agreement (§11).

This is a draft template, not legal advice, and is not a substitute for review and finalization by a licensed attorney. Related: `FOR-YOUR-ATTORNEY.md`, `FULL-VALUE-DELIVERY-GUARANTEE.md`, `ADVERTISER-AI-REPORTS.md`, `AI-CONTENT-DISCLOSURE-DESIGN.md`, `TAX-`

